

HOUSE No. 4757

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, November 19, 2025.

The committee on Community Development and Small Businesses, to whom was referred the petition (accompanied by bill, House, No. 305) of Angelo J. Puppolo, Jr., relative to zoning ordinances and by-laws and improving housing opportunities, reports recommending that the accompanying bill (House, No. 4757) ought to pass [Representative Thurber of Somerset dissents].

For the committee,

ANDRES X. VARGAS.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting housing opportunities and access.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1A of chapter 40A of the General Laws is hereby amended by
2 adding the following 3 definitions:-

3 “Excluded Land”, land defined by reference to the ownership, use codes, use restrictions,
4 and hydrological characteristics in MassGIS and consists of the following: (i) All Publicly-
5 owned land, except for Lots or portions of Lots determined to be Developable public land; (ii)
6 All rivers, streams, lakes, ponds and other surface waterbodies; (iii) All wetland resource areas,
7 together with a buffer zone around wetlands and waterbodies equivalent to the minimum setback
8 required by 310 CMR 15.00: The State Environmental Code, Title 5: Standard Requirements for
9 the Siting, Construction, Inspection, Upgrade and Expansion of On-site Sewage Treatment and
10 Disposal Systems and for the TransPort and Disposal of Septage; (iv) Protected open space and
11 recreational land that is legally protected in perpetuity (for example, land owned by a local land
12 trust or subject to a conservation restriction), or that is likely to remain undeveloped due to
13 functional or traditional use (for example, cemeteries); (v) All Public rights-of-way and Private
14 rights-of-way; (vi) Privately-owned land on which development is prohibited to protect private

or public water supplies, including, but not limited to, Zone I wellhead protection areas and Zone A surface water supply protection areas; (vii) Privately-owned land used for educational or institutional uses such as a hospital, prison, electric, water, wastewater or other utility, museum, or private school, college or university. If privately owned land that would otherwise be excluded is no longer being used for such educational or institutional uses, EOHLC may determine that such land no longer being so used is Developable Land.

“Calculable developable land”, land on which multi-family housing can be permitted and constructed, consisting of (a) all privately-owned land except Lots or portions of Lots that meet the definition of Excluded land; and (b) Developable public land.

"Developable land area", that area within an approved smart growth district that can be feasibly developed into residential or mixed use development determined in accordance with regulations of the department. Developable land area shall not include: (1) land area that is already substantially developed, including existing parks and dedicated, perpetual open space within such substantially developed portion; (2) open space designated by the city or town as provided in section 6; or (3) areas exceeding one-half acre of contiguous land that are unsuitable for development because of topographic features or for environmental reasons, such as wetlands.

SECTION 2. Section 9 of chapter 40A, as so appearing, is hereby amended by inserting after the second paragraph the following paragraph:-

In a city or town where less than 10% of the housing units are located in multi-family structures, the city or town shall establish one or more multifamily zoning districts consisting of 1.5% of all calculable developable land. The land within the multifamily zoning district(s) should adhere to the definition of “developable land area” as defined in Section 1A of this

chapter. Zoning ordinances or by-laws shall establish a housing density for by-right multifamily development in such zoning districts of not less than twenty (20) dwelling units per acre. As used herein, “multifamily housing” means apartment or condominium units in buildings which contain or will contain more than three (3) such units.

SECTION 3. (a) Section 9 of chapter 40A, as so appearing, is hereby amended by striking out, in the fifth paragraph, the words “open space residential developments or”.

(b) Section 9 of chapter 40A, as so appearing, is hereby amended by striking out the sixth paragraph and inserting in place thereof the following paragraph:-

Notwithstanding any provision of this section to the contrary, zoning ordinances or by-laws shall provide that open space residential development shall be permitted by right in residential zoning districts at the density permitted in the zoning district in which the property is located upon review and approval by a planning board pursuant to the applicable provisions of sections 81K to 81GG, inclusive, of chapter 41 and in accordance with its rules and regulations governing subdivision control. Zoning ordinances and by-laws shall not require the submission of a plan showing a standard subdivision complying with the otherwise applicable requirements of the ordinance or by-laws as a condition precedent to the approval of an open space residential development plan.

(c) Section 81Q of chapter 41, as so appearing, is hereby amended by inserting after the second sentence the following sentence:-

Such rules shall not require the submission of a plan showing a standard subdivision complying with the requirements of the local zoning ordinance or by-laws as a condition

precedent to the approval of a plan depicting an open space residential development pursuant to section 9 of chapter 40A.

SECTION 4. (a) The twelfth paragraph of Section 9 of chapter 40A, as so appearing, is hereby amended by deleting the words “a two-thirds vote of boards with more than five members, a vote of at least four members of a five member board, and a unanimous vote of a three member board” and inserting in place thereof the following words:- the concurring vote of a majority of the members then in office.

(b) The fourth paragraph of Section 15 of chapter 40A, as so appearing, is hereby amended by deleting the words “all members of the board of appeals consisting of three members, and a concurring vote of four members of a board consisting of five members” and inserting in place thereof the following words:- the concurring vote of a majority of the members of the board of appeals then in office.

SECTION 5. All cities and towns in the commonwealth shall determine their calculable developable land by December 1st, 2026.

SECTION 6. Chapter 121A of the General Laws, as so appearing, is hereby amended by adding the following section:

Section 20. There shall be a commission to study reforms to area median income limits across the commonwealth to facilitate the access to more affordable housing opportunities.

The commission shall consist of: 2 members of the Senate, 1 of whom shall represent a Gateway Municipality as defined in section 3A of chapter 23A of the General Laws and shall serve as co-chair; 2 members of the House of Representatives, 1 of whom shall represent a

79 Gateway Municipality and shall serve as co-chair; 3 members appointed by the governor, 1 of
80 whom shall represent the Massachusetts Association of Regional Planning Agencies, 1 of whom
81 shall represent Abundant Housing Massachusetts, 1 of whom shall represent the Massachusetts
82 Municipal Association; and 6 members appointed by the Secretary of Housing and Economic
83 Development. The commission shall file a report of its findings and recommendations, including,
84 but not limited to, legislative, regulatory, and procedural changes, with the clerks of the senate
85 and house of representatives, the chairs of the joint committee on housing not later than
86 December 31, 2026.